

1 AN ACT relating to critical facility mapping and declaring an emergency.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 158.4433 is amended to read as follows:

4 (1) As used in this section, "school mapping data" means mapping information
5 provided in an electronic or a digital format to assist first responders in responding
6 to emergencies at schools.

7 (2) (a) The General Assembly does hereby establish the School Mapping Data
8 Program to be administered by the Kentucky 911 Services Board~~[Center for~~
9 ~~School Safety]~~. The Kentucky 911 Services Board~~[Center for School Safety]~~
10 shall utilize available funds to develop school mapping data for each public
11 school, public charter school, and any private school that requests to
12 participate in the program. The program shall be administered by the
13 Kentucky 911 Services Board~~[Center for School Safety]~~ pursuant to this
14 section, which may include contracting for services pursuant to the relevant
15 provisions of the Kentucky Model Procurement Code in KRS Chapter 45A.
16 The Kentucky 911 Services Board~~[Center for School Safety]~~ shall be
17 responsible for ensuring that all funds received for and expended related to the
18 School Mapping Data Program are utilized for the purposes of school
19 mapping.

20 (b) The Kentucky 911 Services Board~~[Center for School Safety]~~ shall provide the
21 data developed by the program to the state school security marshal,
22 participating schools, participating districts, and local law enforcement and
23 public safety agencies for use in response to emergencies and for conducting
24 drills required under KRS 158.162(5). The school mapping data shall be
25 excluded from the application of KRS 61.870 to 61.884.

26 (c) The Kentucky 911 Services Board~~[Center for School Safety]~~ shall apply for
27 any federal grant funds that may be used to accomplish the purposes of the

1 program. The **Kentucky 911 Services Board**~~[Center for School Safety]~~ may
2 also solicit private funds to support the program.

3 (3) The School Mapping Data Program shall establish a single verified source of
4 mapping data for each participating school campus in the state that is standardized,
5 accurate, and accessible to public safety agencies to ensure efficient response to any
6 emergency on a school campus. The school mapping data provided shall:

7 (a) Be compatible with software platforms used by local, county, state, and
8 federal public safety agencies that provide emergency services to the specific
9 school for which the data is provided without requiring such agencies to
10 purchase additional software or requiring a fee to view or access the data;

11 (b) Be compatible with security software platforms in use by the participating
12 school or district for which the data is provided without requiring the school
13 or district to purchase additional software or requiring a fee to view or access
14 the data;

15 (c) Be in a printable format and, if requested by a law enforcement or public
16 safety agency or participating school or district in addition to those described
17 in paragraph (a) of this subsection, be in a digital file format that can be
18 integrated into interactive mobile platforms in use;

19 (d) Be verified by the **Kentucky 911 Services Board, or any entity contracted by**
20 **the Kentucky 911 Services Board to develop the mapping data pursuant to**
21 **this section**~~[Center for School Safety]~~ for accuracy by a walk-through of
22 school buildings and grounds;

23 (e) Be oriented to true north;

24 (f) Include accurate floor plans overlaid on current, verified aerial imagery of
25 campus;

26 (g) Contain site-specific labeling that matches the structure of school buildings
27 that includes:

- 1 1. Room labels;
- 2 2. Hallway names or identifiers;
- 3 3. External door or stairwell numbers;
- 4 4. Locations of hazards;
- 5 5. Critical utility locations;
- 6 6. Key boxes;
- 7 7. Automated external defibrillators; and
- 8 8. Trauma kits;
- 9 (h) Contain site-specific labeling that matches the school grounds that includes:
 - 10 1. Parking areas;
 - 11 2. Athletic fields;
 - 12 3. Surrounding roads; and
 - 13 4. Neighboring properties;
- 14 (i) Be overlaid with a gridded coordinate system;
- 15 (j) Not be modified or updated independently without corresponding updates to
 - 16 school mapping data within software platforms used by local, county, state,
 - 17 and federal public safety agencies that provide emergency services to the
 - 18 specific school; and
- 19 (k) Provide to public safety agencies and participating schools or districts the
 - 20 school mapping data developed pursuant to the program perpetually and at no
 - 21 cost to the public safety agencies or participating schools or districts.
- 22 (4) A participating school district or campus shall not be required to adopt new school
 - 23 mapping data if, as of July 1, 2024, the school district or campus previously
 - 24 implemented school mapping data with capabilities that meet the requirements of
 - 25 subsection (3)(a) to (k) of this section.

26 ➔Section 2. KRS 65.7629 is amended to read as follows:

27 The board shall administer the provisions of KRS 65.7621 to 65.7643, and shall have the

1 following powers and duties:

- 2 (1) To review, evaluate, and approve or disapprove the plans or plan modifications that
3 are submitted to the board for complying with the wireless E911 service
4 requirements established by the FCC order and by any rules or regulations which
5 are or may be adopted by the Federal Communications Commission in carrying out
6 the FCC order;
- 7 (2) To develop standards to be followed by the board in reviewing, evaluating,
8 approving, or disapproving the plans or plan modifications that are submitted to the
9 board;
- 10 (3) (a) To collect the CMRS service charge from each CMRS connection:
- 11 1. With a place of primary use, as defined in 4 U.S.C. sec. 124, within the
12 Commonwealth; or
- 13 2. For prepaid CMRS connections, until January 1, 2017, at which time the
14 CMRS prepaid service charge imposed under KRS 65.7634 and
15 collected under KRS 142.100 to 142.135 shall take effect and this
16 subparagraph shall no longer be in force:
- 17 a. With a place of primary use, as defined in 4 U.S.C. sec. 124,
18 within the Commonwealth; or
- 19 b. With a geographical location associated with the first six (6) digits,
20 or NPA/NXX, of the mobile telephone number is inside the
21 geographic boundaries of the Commonwealth.
- 22 (b) The CMRS postpaid service charge, and until January 1, 2017, the CMRS
23 prepaid service charge, shall be seventy cents (\$0.70) per month per CMRS
24 connection, to be calculated, collected, and remitted in accordance with KRS
25 65.7635. The amount of the CMRS service charge shall not be increased
26 except by act of the General Assembly;
- 27 (4) To deposit the proceeds of the CMRS prepaid service charge levied under KRS

- 1 65.7634 that are collected by the Department of Revenue into the CMRS fund
2 established by KRS 65.7627 and to distribute those revenues in accordance with
3 KRS 65.7631. The CMRS prepaid service charge shall be calculated, collected, and
4 remitted in accordance with KRS 65.7634 and 142.100 to 142.135;
- 5 (5) To administer and maintain the CMRS fund according to the provisions of KRS
6 65.7627, and promptly to deposit all revenues from the CMRS service charges into
7 the CMRS fund;
- 8 (6) To make disbursements from the CMRS fund, according to the allocations and
9 requirements established in KRS 65.7631;
- 10 (7) To establish procedures and guidelines to be followed by the board in reviewing,
11 evaluating, and approving or disapproving disbursements from the CMRS fund and
12 requests for disbursements made in accordance with KRS 65.7631;
- 13 (8) To resolve conflicts regarding reimbursable costs and expenses under KRS
14 65.7631(4);
- 15 (9) To submit annual reports to the Auditor of Public Accounts no later than sixty (60)
16 days after the close of each fiscal year, which shall provide an accounting for all
17 CMRS service charges deposited into the CMRS fund during the preceding fiscal
18 year and all disbursements to CMRS providers and PSAPs during the preceding
19 fiscal year;
- 20 (10) To employ consultants, engineers, and other persons and employees as may be, in
21 the judgment of the board, essential to the board's operations, functions, and
22 responsibilities, and to fix and pay their compensation from funds available to the
23 board;
- 24 (11) To acquire, by gift, purchase, installment purchase, or lease, any equipment
25 necessary to carry out the board's purposes and duties;
- 26 (12) To retain any and all information, including all proprietary information, that is
27 submitted to the board by CMRS providers and PSAPs, for the purposes of

1 maintaining it and verifying its accuracy;

2 (13) To retain, with approval by the Auditor of Public Accounts, an independent
3 certified public accountant who shall audit, once every twenty-four (24) months, the
4 books of the board, CMRS providers, and PSAPs eligible to request or receive
5 disbursements from the CMRS fund under KRS 65.7631 for the following
6 purposes:

7 (a) To verify the accuracy of collection, receipts, and disbursements of all
8 revenues derived from the CMRS service charges and the number of wireless
9 E911 calls received by each PSAP eligible to request or receive disbursements
10 from the CMRS fund;

11 (b) To determine whether the revenues generated by the CMRS service charges
12 equal, exceed, or are less than the costs incurred in order to comply with the
13 FCC order;

14 (c) To determine the sufficiency of the funds currently being withheld for
15 administrative purposes under KRS 65.7631(2); and

16 (d) To verify the accuracy of CMRS customer count information reported to the
17 board by CMRS providers.

18 The independent certified public accountant shall make a report of the audits to the
19 board and to the appropriate chief executive officer or officers of the CMRS
20 providers and PSAPs, and to the local governments responsible for the formation of
21 the PSAP. The independent certified public accountant shall also forward a copy of
22 the audits conducted pursuant to this subsection to the Legislative Research
23 Commission for referral to the appropriate committee or committees and to the
24 Auditor of Public Accounts. Upon request, the independent certified accountant
25 shall send any work papers related to the audits to the Auditor of Public Accounts.
26 All information with respect to the audits shall be released to the public or
27 published only in aggregate amounts which do not identify or allow identification

- 1 of numbers of subscribers or revenues attributable to individual CMRS providers;
- 2 (14) To ensure that all carriers have an equal opportunity to participate in the wireless
- 3 E911 system;
- 4 (15) To ensure that wireless E911 systems are compatible with wireline E911 systems;
- 5 (16) To determine the appropriate method for disbursing funds to PSAP's based on
- 6 wireless workload under KRS 65.7631(5)(b);
- 7 (17) To develop standards and protocols for the improvement and increased efficiency
- 8 of 911 services in Kentucky;
- 9 (18) To provide direct grants or state matches for federal, state, or private grants for the
- 10 establishment or improvement of the 911 emergency telecommunications system in
- 11 the Commonwealth;~~and~~
- 12 (19) To develop and implement standards for advancements and new technology in the
- 13 operation of emergency telecommunications in the state, including the development
- 14 and implementation of next generation 911 service; **and**
- 15 **(20) To administer and oversee the School Mapping Data Program established in**
- 16 **Section 1 of this Act.**

17 ➔Section 3. KRS 158.442 is amended to read as follows:

- 18 (1) The General Assembly hereby authorizes the establishment of the Center for School
- 19 Safety. The center's mission shall be to serve as the central point for data analysis;
- 20 research; dissemination of information about successful school safety and school
- 21 security programs, best practices, training standards, research results, and new
- 22 programs; and, in collaboration with the Department of Education and others, to
- 23 provide technical assistance for safe schools.
- 24 (2) To fulfill its mission, the Center for School Safety shall:
- 25 (a) Establish a clearinghouse for information and materials concerning school
- 26 violence prevention;
- 27 (b) Provide program development and implementation expertise and technical

- 1 support to schools, law enforcement agencies, and communities, which may
2 include coordinating training for administrators, teachers, students, parents,
3 and other community representatives;
- 4 (c) Analyze the data collected in compliance with KRS 158.444;
- 5 (d) Research and evaluate school safety programs so schools and communities are
6 better able to address their specific needs;
- 7 (e) Administer a school safety grant program for local districts as directed by the
8 General Assembly;
- 9 (f) Promote the formation of interagency efforts to address discipline and safety
10 issues within communities throughout the state in collaboration with other
11 postsecondary education institutions and with local juvenile delinquency
12 prevention councils;
- 13 (g) Prepare and disseminate information regarding best practices in creating safe
14 and effective schools;
- 15 (h) Advise the Kentucky Board of Education on administrative policies and
16 administrative regulations relating to school safety and security;
- 17 (i) By July 1 of each year, provide an annual report to the Governor, the
18 Kentucky Board of Education, and the Interim Joint Committee on Education
19 regarding the status of school safety in Kentucky, including the number and
20 placement of school resource officers working in school districts in Kentucky
21 and the source of funding and method of employment for each position in
22 accordance with KRS 158.4414;
- 23 (j) Develop and implement a school safety coordinator training program based on
24 national and state best practices in collaboration with the Kentucky
25 Department of Education for school safety coordinators appointed pursuant to
26 KRS 158.4412. The training shall be approved by the board of directors of the
27 Center for School Safety and include instruction on at least the following:

- 1 1. Policies and procedures for conducting emergency response drills using
- 2 an all-hazards approach including hostage and active shooter situations;
- 3 2. Identification and response to threats to school safety and security; and
- 4 3. Preparing for, conducting, and reviewing school security risk
- 5 assessments in accordance with KRS 158.4410;
- 6 (k) Develop and implement a system to provide certification to school districts
- 7 that the center has verified that:
- 8 1. A potential Kentucky guardian, as defined in KRS 158.4431, has met all
- 9 of the requirements of KRS 158.4431(3); and
- 10 2. Individuals employed as guardians meet the requirements of KRS
- 11 158.4431(4) and (5), as necessary;
- 12 (l) If funds are available, employ an individual whose job responsibilities include
- 13 oversight of the guardian program, including but not limited to:
- 14 1. The requirements of paragraph (k) of this subsection; and
- 15 2. The creation of model policy to be used by local boards of education
- 16 when adopting the policies in KRS 158.4431(8); and
- 17 (m) ~~[Administer and oversee the School Mapping Data Program established~~
- 18 ~~pursuant to KRS 158.4433; and~~
- 19 ~~(n)]~~Award a school safety coordinator certificate of completion to a school safety
- 20 coordinator upon satisfactory completion of the training program.
- 21 (3) The Center for School Safety shall be governed by a board of directors consisting of
- 22 fifteen (15) members. Members shall consist of:
- 23 (a) The commissioner or a designee of the Department of Education;
- 24 (b) The secretary or a designee of the Cabinet for Health and Family Services;
- 25 (c) The commissioner or a designee of the Department for Behavioral Health,
- 26 Developmental and Intellectual Disabilities;
- 27 (d) The commissioner or a designee of the Department of Kentucky State Police;

- 1 (e) The commissioner or a designee of the Department of Criminal Justice
2 Training;
- 3 (f) The executive director or a designee of the Kentucky Office of Homeland
4 Security;
- 5 (g) A representative which shall be appointed by the Governor from one (1) list
6 of three (3) names submitted by the Kentucky League of Cities;
- 7 (h) A representative which shall be appointed by the Governor from one (1) list
8 of three (3) names submitted by the Kentucky School Boards Association;
- 9 (i) A representative which shall be appointed by the Governor from one (1) list
10 of three (3) names submitted by the Kentucky Association of School
11 Superintendents;
- 12 (j) A representative which shall be appointed by the Governor from one (1) list
13 of three (3) names submitted by the Kentucky Association of School Resource
14 Officers;
- 15 (k) A representative which shall be appointed by the Governor from one (1) list
16 of three (3) names submitted by the Kentucky Education Association;
- 17 (l) A representative which shall be appointed by the Governor from one (1) list
18 of three (3) names submitted by the Kentucky School Nurses Association;
- 19 (m) A representative which shall be appointed by the Governor from one (1) list
20 of three (3) names submitted by the Kentucky Association for Psychology in
21 the Schools;
- 22 (n) A representative which shall be appointed by the Governor from one (1) list
23 of three (3) names submitted by the Kentucky School Counselor Association;
24 and
- 25 (o) A representative which shall be appointed by the Governor from one (1) list
26 of three (3) names submitted by the Kentucky Parent Teacher Association.
- 27 (4) Notwithstanding KRS 12.028, the Center for School Safety and its board of

1 directors shall not be subject to reorganization by the Governor.

2 ➔Section 4. Whereas accurate school mapping data is a critical tool for first
3 responders in protecting the safety of students in our public schools during an emergency
4 response, an emergency is declared to exist, and this Act takes effect upon its passage and
5 approval by the Governor or upon its otherwise becoming a law.